

The first principle is compulsion: If a monetary sanction is authorized, “the court *shall impose* that sanction” unless the court finds that the person subject to the sanction either acted with substantial justification or imposition of sanctions would be unjust under the circumstances. (§ 2023.030(a), italics added.)...The second principle is causation: Monetary sanctions for engaging in misuse of the discovery process may only be imposed based on attorney fees and costs “incurred by anyone *as a result of that conduct.*” (§ 2023.030(a), italics added.) In *Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 195, the Court of Appeal reversed an order awarding monetary sanctions because the discovery motions did not explain how attorney fees had been incurred as a result of the discovery abuses...The third principle, and the most significant one for our purposes, is reasonableness: The amount of monetary sanctions is limited to the “*reasonable* expenses, including attorney's fees” that a party incurred as a result of the discovery abuse. (§ 2023.030(a), italics added.) The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. (*Parker v. Wolters Kluwer United States, Inc.* (2007) 149 Cal.App.4th 285, 294; *Ghanooni v. Super Shuttle* (1993) 20 Cal.App.4th 256, 262.)

(*Cornerstone*, *supra*, pp. 790-791.)

While several discovery statutes compel sanctions under the circumstances, (See e.g. Code of Civil Procedure sections, 2023.020, 2023.030, subdivision (b), 2033.290, subdivision (d), and 2030.300, subdivision (d)), Plaintiff’s counsel fails to provide this court with adequate support for the sanctions sought and this court finds, under the circumstances, the sanctions amount to be unreasonable.

A factor this court considered in determining the reasonableness of the sanctions amount was the wildly different recitation of the meet and confer efforts by the parties. There must be a “serious effort at negotiation and informal resolution” and “the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439; See also *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.) “Argument is not the same as informal negotiation; attempting informal resolution means more than the mere attempt by the discovery proponent to persuade the objector of the error of his ways; and a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement*, *supra*, p.1294.)

In summary, while the court acknowledges numerous contacts between the parties, in all mediums, the court does not find that the parties made good faith efforts to reach a resolution to these issues. The court orders Defendant to pay reasonable sanctions in the amount of \$2,500 by September 30, 2026.

2. 9:00 AM CASE NUMBER: C23-02534

CASE NAME: CITY OF WALNUT CREEK VS. WINDSOR CAPITAL GROUP, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY OF
DEFENDANT WINDSOR CAPITAL GROUP'S PERSON MOST QUALIFIED**

FILED BY: CITY OF WALNUT CREEK

TENTATIVE RULING:

Plaintiff's motion to compel further deposition testimony of Defendant WCG's Person(s) Most Qualified (Subject Matter Nos. 1-5, 7-12, 14-15) and to compel its production of documents as requested in the Fourth Amended Notice of Taking of Deposition(s) of Person(s) Most Qualified, pursuant to Code of Civil Procedure section 2025.480 is DENIED.

Plaintiff's request for sanctions is GRANTED but significantly reduced. Defendant's request for sanctions is DENIED.

This court appreciates Plaintiff's position that when Mr. Nesbitt Jr. was first deposed that he appeared unprepared and arguably not the person most qualified or knowledgeable from WCG to address the clearly identified subject matter for the deposition. What is concerning to the court, however, is whom Plaintiff continues to insist to depose on this subject matter in light of the fact that they have appeared to have deposed several individuals identified by Defendant as the persons who would be able to provide WCG's responses to the subject topics noticed. The court does not intend to oversimplify this case, rather it is confused as it appears that Defendant WCG has consistently maintained that the additional information Plaintiff seeks is within the possession and knowledge fund of Walnut Creek Opco LLC ("Opco") or PropCo and has offered to provide further depositions with members of WCG on different issues that would address the subject matter noticed in the deposition request. Mr. Nesbitt Jr. has repeatedly indicated he does not possess the information that Plaintiff seeks. While the court finds Defendant's failure to present the person most qualified or knowledgeable and Mr. Nesbitt Jr. failure to properly prepare for his deposition is relevant to this court's order for sanctions, Defendant has made numerous offers to Plaintiff to conduct further depositions of other identified individuals to address the subject matter Plaintiff has identified. Based on Defendant's opposition, it appears that Plaintiff refuses to do so.

A party's belief that a response is *not good enough* is not a basis for issuing a motion to compel. (See e.g. *Holquin v. Superior Court* (1972) 22 Cal. App. 3d 812, 820 ["Plaintiffs' position in this proceeding is therefore, in effect, that certain matters which defendants have denied are so unquestionably true, that they cannot deny them. It may well be that from their point of view defendants might be better off, in the long run, if instead of denying all the requests outright, they had denied some of them for lack of information or belief. It may also be that after a trial it will appear that plaintiffs are entitled to financial sanctions under subdivision (c), section 2034 of

the Code of Civil Procedure. We do not see, however, how any court can force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions.”].)

Plaintiff’s motion to compel further deposition of Defendant WCG’s Person Most Qualified/Person Most Knowledgeable is DENIED.

However, sanctions are appropriate pursuant to California Code of Civil Procedure section 2025.450, subdivision (g)(1), although the court finds that Plaintiff’s request is unreasonable under the circumstances. Defendant is ordered to pay Plaintiff sanctions in the amount of \$1,500 by September 30, 2026.

**3. 9:00 AM CASE NUMBER: C23-02534
CASE NAME: CITY OF WALNUT CREEK VS. WINDSOR CAPITAL GROUP, INC.
*HEARING ON MOTION FOR DISCOVERY MOTION TO COMPEL FURTHER RESPONSES AND FOR
MONETARY SANCTIONS
FILED BY: CITY OF WALNUT CREEK
*TENTATIVE RULING:***

The court believed this to be an inadvertent duplicate posting of Line #1.

**4. 9:00 AM CASE NUMBER: C25-02552
CASE NAME: LUIS ROSAS VS. MARGARET LIEVERS
*HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT MARGARET ANN LIEVERS TO
PROVIDE FURTHER RESPONSE TO FORM INTERROGATORIES, SET ONE, NO. 17.1
FILED BY: ROSAS, LUIS ALBERTO BALEON
*TENTATIVE RULING:***

On September 9, 2026. Court signed Order on Stipulation by the parties Re: Withdrawal of this motion. Matter dropped from calendar.

**5. 9:00 AM CASE NUMBER: C25-02552
CASE NAME: LUIS ROSAS VS. MARGARET LIEVERS
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST
FOR ADMISSIONS (SET ONE) FROM MARGARET ANN LIEVERS
FILED BY: ROSAS, LUIS ALBERTO BALEON
*TENTATIVE RULING:***

On September 9, 2026. Court signed Order on Stipulation by the parties Re: Withdrawal of this motion. Matter dropped from calendar.